

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAMES LOUIS DELL"EVA,

Petitioner

VS.

NIKKI CHAU TRAN-DELL"EVA,

Respondent

) Case Number: FDI-24-800578

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner James Dell'Eva (Father) and Respondent Nikki Tran-Dell'Eva (Mother). The parties agree they were married for at least 14 years. The parties have two minor children, Collette (DOB: 10/1/2009) and Luca (DOB: 3/1/2013).
- 2) On 5/8/2025, a Stipulation and Order Re Child Custody, Timeshare, and Other Orders was filed providing that the parties share joint legal and physical custody, and the parties have a 50/50 timeshare with the children.
- 3) On 7/1/2025, Father filed a Request for Order seeking guideline child support retroactive to 11/19/2024 (the date Father filed his Petition for Dissolution), temporary guideline spousal support, Smith / Ostler child support, \$18,500 in need-based attorney's fees, and an order requiring Mother to pay Father one-half of their 2024 federal and state tax refunds in the amount of \$4,227. Father states that he lives in a separate property house (that does not have a mortgage) that he inherited from his mother. Father states that he has not worked since 2019 when he was employed at Starbucks as a retail manager (earning \$4,333 per month). Father states that after he

1 left his job at Starbucks (at Mother's suggestion due to the "anxiety, stress, and trauma he
2 suffered working there"), he shouldered the load of assisting the children to participate in their
3 numerous extracurricular activities, ensuring their son's reading level rose to grade-level, and
4 frequently volunteering for the children's school and extracurricular events. Father states that his
5 taking on these responsibilities permitted Mother to advance in her career.

6 4) On 8/8/2025, Mother filed a Responsive Declaration. Mother states she moved out of the family
7 home on 7/1/2025 and that she was covering all of the household expenses until then. Mother
8 states that Father's request for retroactive financial support is inappropriate. Mother states she is
9 still paying for Father's car insurance and registration, the children's monthly insurance, and
10 various expenses for the children such as cell phones, swim lessons, and clothing. Mother states
11 that their daughter's tuition for 2025 – 2026 is \$19,500 and Father contributed \$2,925. Mother
12 states that she incurred \$17,995 to move out of the marital home and purchase new furniture.
13 Mother states that she received a \$135,632 bonus in March 2025, and the net amount received
14 was \$84,838. Mother states that she used these funds to pay over \$52,000 charges to their joint
15 credit card, \$19,500 to relocate to a new residence, and \$6,750 for private school tuition. Mother
16 asks the Court to impute Father with a salary of \$75,000 per year (\$6,250 per month). Mother
17 also notes that the home where Father lives has an in-law unit which he could rent out for \$1,800
18 per month. Mother also asks the Court to impute additional income to Father because he pays no
19 rent or mortgage, order Father to seek work and submit job search logs and order the parties to
20 share equally private school tuition, extracurricular activities, and unreimbursed healthcare costs.
21 Mother also asks the Court to order each party to pay their own attorney's fees.

22 5) On 8/19/2025, Father filed a Reply Declaration. Father now asks the Court to order child and
23 temporary spousal support retroactive to 3/1/2025. Father reiterates his requests for \$18,500 in
24 need-based attorney's fees and \$4,277 for one-half of the 2024 federal and state tax refunds.
25 Father also asks the Court to order the parties to share 70 / 30 child support add-ons. Father states
26 that he has a "full shoulder separation" and has surgery scheduled on 8/19/2025. Father states that
27 he wants to work and he is working with a life coach funded by his brother to filed a stable field
28 compatible with his parental role. Father states his timeline "has been extended due to medical
29 issues (shoulder and ulcers)." Father asks the Court to issue a seek work order and provide Father

1 with more time before imputing him with income. Father states that their daughter has asked him
2 not to rent the downstairs apartment because she feels uncomfortable with a stranger sharing their
3 home. Father also disputes who contributed to the household expenses before Mother vacated the
4 family residence.

5 6) On 8/26/2025, the parties and their attorneys appeared for a hearing on Father's 7/1/2025 Request
6 for Order. Per the Findings and Order After Hearing filed 9/19/2025, the Court ordered Father to
7 seek work and issued base and Smith / Ostler child and temporary spousal support orders. The
8 Court set a review hearing for 1/29/2026 on the issues of Father's compliance with the Seek Work
9 Order and to review child and temporary spousal support. The review hearing has been continued
10 multiple times and was most recently continued to 9/15/2026.

11 7) The parties have informed the Court that on 9/15/2026 they would like to have a status
12 conference in lieu of a review hearing and are requesting a future Mandatory Settlement
13 Conference date be set.

14 **B. Findings and Order**

15 1) **The parties are ordered to appear** for a status conference and to set a future Mandatory
16 Settlement Conference date.